

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 510

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO GOVERNMENT TRANSPARENCY AND ETHICS; AMENDING SECTION 6-2105, IDAHO CODE, TO REVISE A PROVISION REGARDING REMEDIES FOR EMPLOYEE ACTIONS AND PROOF REQUIRED; AMENDING CHAPTER 21, TITLE 6, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 6-2110, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PUBLIC EMPLOYEE COMMUNICATIONS WITH THE LEGISLATURE AND TO PROVIDE PROTECTIONS FOR SUCH COMMUNICATIONS; AMENDING CHAPTER 1, TITLE 74, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 74-127, IDAHO CODE, TO PROVIDE FOR LEGISLATIVE PUBLIC RECORDS REQUESTS AND AGENCY DUTY TO RESPOND; AMENDING SECTION 74-127, IDAHO CODE, TO REDESIGNATE THE SECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 6-2105, Idaho Code, be, and the same is hereby amended to read as follows:

6-2105. REMEDIES FOR EMPLOYEE BRINGING ACTION -- PROOF REQUIRED. (1) As used in this section, "damages" means damages for injury or loss caused by each violation of this chapter, and includes court costs and reasonable attorneys' fees.

(2) An employee who alleges a violation of this chapter may bring a civil action for appropriate injunctive relief or actual damages, or both, within one hundred eighty (180) days after the occurrence of the alleged violation of this chapter.

(3) An action begun ~~under~~ pursuant to this section may be brought in the district court for the county where the alleged violation occurred, the county where the complainant resides, or the county where the person against whom the civil complaint is filed resides or has his principal place of business.

(4) To prevail in an action brought under the authority of this section, the employee shall establish, by a preponderance of the evidence, that the employee has suffered an adverse action because the employee, or a person acting on his behalf, engaged or intended to engage in an activity protected under section 6-2104 or 6-2110, Idaho Code.

(5) (a) In no action brought pursuant to this chapter shall a judgment for noneconomic damages be entered for a claimant exceeding the limitation on damages contained in section 6-1603(1), Idaho Code.

(b) The limitation contained in this subsection shall apply to the sum of noneconomic damages sustained by a claimant.

(c) Governmental entities and their employees shall not be liable for punitive damages on any claim allowed under the provisions of this section.

1 SECTION 2. That Chapter 21, Title 6, Idaho Code, be, and the same is
2 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
3 ignated as Section 6-2110, Idaho Code, and to read as follows:

4 6-2110. PUBLIC EMPLOYEE COMMUNICATIONS WITH THE LEGISLATURE -- PRO-
5 TECTIONS. (1) An employee may communicate in good faith with any member of
6 the Idaho legislature, any member of a legislative committee, or legislative
7 staff, including the provision of information, data, analysis, or profes-
8 sional expertise, whether or not such communication constitutes a report of
9 any type of abuse or any type of waste or violation of law pursuant to section
10 6-2104, Idaho Code. For purposes of this subsection, an employee communi-
11 cates in good faith if there is a reasonable basis in fact for the communica-
12 tion. Good faith is lacking where the employee knew or reasonably ought to
13 have known that a communication is malicious, false, or frivolous.

14 (2) An employer shall not take or threaten adverse action against an em-
15 ployee because the employee:

16 (a) Communicated or attempted to communicate in good faith with any
17 member of the Idaho legislature, any member of a legislative committee,
18 or legislative staff;

19 (b) Provided information or assistance in response to a legislative re-
20 quest made pursuant to section 74-127, Idaho Code; or

21 (c) Participated in a legislative hearing, briefing, inquiry, or pro-
22 ceeding.

23 (3) No employer may adopt, enforce, or maintain any policy, rule, di-
24 rective, practice, or agreement, written or unwritten, that:

25 (a) Prohibits or restricts employee communication with any member of
26 the Idaho legislature, any member of a legislative committee, or leg-
27 islative staff;

28 (b) Requires prior approval, notification, or authorization before
29 such communication; or

30 (c) Subjects an employee to discipline or retaliation for such communi-
31 cation.

32 (4) Protection under this section applies only to communications made
33 in good faith and does not authorize knowingly false statements or unlawful
34 disclosure of confidential information.

35 SECTION 3. That Chapter 1, Title 74, Idaho Code, be, and the same is
36 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
37 ignated as Section 74-127, Idaho Code, and to read as follows:

38 74-127. LEGISLATIVE PUBLIC RECORDS REQUESTS -- AGENCY DUTY TO RE-
39 SPOND. (1) Every agency shall respond in good faith and as provided in this
40 section to a public records request from a member of the Idaho legislature,
41 a legislative committee or subcommittee, or legislative services office
42 staff acting on behalf of the legislature. For the purposes of this section,
43 "agency" means any department, board, commission, office, or institution in
44 the executive branch of the Idaho state government.

45 (2) Unless a different deadline is specified by law or agreed to by the
46 requesting legislator or committee, the agency shall acknowledge receipt of
47 the request within three (3) working days and shall provide a substantive re-
48 sponse within fifteen (15) working days of receipt.

1 (3) If the agency cannot reasonably provide a substantive response
2 within fifteen (15) working days, it shall within that period provide writ-
3 ten notice explaining the reason for delay and provide a date certain for
4 response not to exceed an additional fifteen (15) working days, absent ex-
5 traordinary circumstances.

6 (4) A substantive response may include records, data, explanations,
7 analysis, or other information responsive to the request, including identi-
8 fication of information not maintained by the agency.

9 (5) Nothing in this section requires disclosure of information made
10 confidential by state or federal law. The agency shall identify the legal
11 basis for nondisclosure and provide any reasonably segregable nonconfiden-
12 tial information.

13 SECTION 4. That Section 74-127, Idaho Code, be, and the same is hereby
14 amended to read as follows:

15 ~~74-127~~ 74-128. SEVERABILITY. The provisions of this act are hereby de-
16 clared to be severable and if any provision of this act or the application of
17 such provision to any person or circumstance is declared invalid for any rea-
18 son, such declaration shall not affect the validity of remaining portions of
19 this act.

20 SECTION 5. An emergency existing therefor, which emergency is hereby
21 declared to exist, this act shall be in full force and effect on and after
22 July 1, 2026.